



KENYA NATIONAL COMMISSION ON HUMAN RIGHTS

**REMARKS BY MS. CLARIS OGANGAH, CHAIRPERSON,
KENYA NATIONAL COMMISSION ON HUMAN RIGHTS
(KNCHR), DURING THE PRESENTATION OF THE NATIONAL
REPARATIONS FRAMEWORK AND REPORT TO THE
PRESIDENT OF THE REPUBLIC OF KENYA, H.E DR.
WILLIAM SAMOEI RUTO, ON MONDAY 15TH JUNE 2026 AT
STATE HOUSE, NAIROBI.**

CHAIRPERSON'S ADDRESS

NAIROBI, 15TH JUNE 2026

Your Excellency, Dr. William Samoei Ruto, the President of the Republic of Kenya and Commander-in-Chief of the Defence Forces,
The Chief of Staff and Head of Public Service, Mr. Felix Koskei,
The Attorney-General of the Republic of Kenya, Hon. Dorcas Oduor,
The Cabinet Secretary for Interior and National Administration, Hon. Kipchumba Murkomen,
The Principal Secretary for Interior and National Administration, Dr. Raymond Omollo,
The Principal Secretary, State Department for Justice, Human Rights and Constitutional Affairs, Hon. Judith Pareno,
The Chief Registrar of the Judiciary, Hon. Winfridah Mokaya,
Senior Advisor of Constitutional Affairs in the Executive Office of the President, Prof Makau Mutua,
Members of the Panel of Experts,
My fellow Commissioners,
Members of Staff,
Distinguished Guests,
Ladies and Gentlemen,

1. Good morning. Hamjambo!
2. **Your Excellency**, today marks a historic and significant milestone in Kenya's continuing journey towards justice, accountability, and, most importantly, today opens up a national conversation on the long-overdue question of violations of human rights but also the issue of reparations including the matter of compensation for persons who have suffered violations.

3. So today we gather here not merely to present a Report, but to reaffirm the State's duty, obligation and commitment to recognizing people who have suffered violations as a result of exercising rights and to move towards providing meaningful remedies for the harm they have suffered and to reflect and agree on the kind of Country that we want Kenya to be.
4. From the onset, the Kenya National Commission on Human Rights (KNCHR) wishes to sincerely acknowledge Your Excellency; for the decisive leadership and commitment demonstrated in initiating this very important and significant process of not just having a National Reparations and Compensation Framework for victims of human rights violations including victims of protests and demonstrations, but the conversation about healing and reconciling the Nation.
5. Your Excellency, as a Country we cannot have a conversation about human rights, about reparations and compensation without honouring and recognising the enduring and courageous role played by the Late **Rt. Hon. Raila Odinga**, whose consistent advocacy for the respect of human rights and reparations for victims of violations has significantly contributed to sustaining this important national conversation. He was very passionate about addressing human rights violations as a critical step in confronting the historical socio-economic and political challenges that have continued to affect our beloved Nation. Today's event is therefore the greatest tribute that we can have as a nation to honour the legacy of the Late Rt Honourable Raila Odinga and implementing the recommendations herein is a post humous honor to his legacy.

6. Your Excellency, your bold and deliberate decision to require this Reparations Framework demonstrates a profound understanding that the State's obligation to victims must be fulfilled through structured, principled, and time-bound action grounded in law, policy, and institutional commitment. This truly reflects our Nation's moral obligation and profound need for justice, accountability, reconciliation, and national healing. It recognizes that sustainable peace cannot be built upon unaddressed grievances and that genuine unity requires acknowledgment of past wrongs, restoration of dignity to victims, and a collective commitment to ensuring that such violations never recur." **The Commission accepted and embraced this responsibility with utmost humility, seriousness, unwavering resolve, and above all a deep sense of National duty and commitment to justice.**
7. Your Excellency, this unprecedented national undertaking marks the first time in Kenya's history that the Government has, on its own initiative, embarked on such a process; one that seeks to formally acknowledge that Human Rights violations occurred. This landmark initiative signifies a clear commitment to move the nation from documentation to redress, from acknowledgment to reform, and from recognition to accountability.
8. Your Excellency, successive Governments have received numerous reports documenting grave human rights violations, including the historic ***Truth, Justice and Reconciliation Commission (TJRC) Report***. These reports recorded violations, identified victims, and set out clear and concrete recommendations, including the establishment of mechanisms for reparations. However, many of these findings remain largely unimplemented, leaving victims to endure prolonged and burdensome pain, loss, and unaddressed injustice without remedy.

The stories captured in this Report remind us that behind every statistic is a human being, a family, and a community whose suffering has often remained unseen and unacknowledged. **By giving voice to these experiences, the Report contributes to a national process of healing founded on truth, recognition, and remembrance."**

9. This Report bears witness to the stories of men, women and voiceless children who were injured, maimed or lost their lives while simply exercising rights guaranteed under our Constitution. It reflects the experiences of families whose lives have been shaped by violence, and of citizens who, with each successive Government, hoped for justice, dignity and reparations.
10. Your Excellency, the promulgation of the **Constitution of Kenya, in 2010** presented a transformative commitment to human rights, democracy, and the rule of law. Through the **Bill of Rights**, Kenyans are guaranteed freedoms of expression, association, assembly, and access to justice. However, despite these constitutional guarantees, violations have continued to occur, particularly in the context of demonstrations, public protests, elections, and civic engagement. This reality has underscored the urgent need for a structured and effective reforms to bridge the gap between constitutional promises and lived experiences.
11. Your Excellency while the Constitution guarantees us rights, we must as a matter of urgency begin to have a conversation on responsibilities, as part of human rights. The conversation around responsibilities is missing in our national discord. Responsibilities of the Citizenry as they exercise their rights, and the responsibilities of the duty bearers as they carry out their duties.

Responsibility to ensure our rights do not infringe on others, and that exercise of rights does not lead to deaths, injuries, destruction of livelihoods, destruction of property including public property. Public property that is expected to offer services to us as citizens.

12. Your Excellency, we must now more than ever have a conversation on the cost of violent protests in Kenya. There is a significant cost on human lives including deaths and injuries and contribution to instability of the Country. But violent protests also have significant short-term and long-term economic consequences for Kenya, affecting public finances, private sector growth, investment, employment, and overall economic stability. The impacts extend beyond the immediate destruction of property and often undermine development gains accumulated over many years.
13. Violent protests lead to reduced economic growth, they disrupt business operations, transportation networks, and commercial activity. Businesses are forced to close temporarily, leading to reduced production, lower sales, and declining tax revenues. When protests occur repeatedly, economic growth slows as both domestic and foreign investors adopt a wait-and-see approach. For Kenya, where services, trade, tourism, and agriculture are major contributors to GDP, prolonged disruptions can significantly reduce quarterly and annual economic growth rates.
14. Your Excellency violent protests lead to declines on foreign direct investments. Investors consistently seek predictability, political stability, and security. Violent protests create perceptions of instability and increase investment risk. For a country such as Kenya seeking to attract manufacturing, technology, and infrastructure investment, recurrent unrest significantly undermines competitiveness.

15. Your Excellency it is not lost on Kenyans that we already face significant fiscal pressures characterized by: public debt obligations, budget deficits, increasing demands for social services and infrastructure investment. In this context, violent protests impose additional economic burdens. Every shilling spent on compensation to victims, in repairing damaged infrastructure or responding to unrest is a shilling unavailable for schools, hospitals, affordable housing, social protection programmes, and economic development initiatives.
16. Allow me, Your Excellency to share with you for example the cost implications of the 2025 violent protests. Going by the data from Ministry of Interior the violent protests that took place between June and July of 2025 has costed the country a whopping loss of about Kshs 3 billion and this is just one month's loss. 3 billion can go away in meeting a lot of our national obligations and as a country we cannot afford to sustain consistent losses as a result of violent public protests. As Kenyans we must understand that these losses mean digging deeper into our pockets to recover these losses and as such it must be our shared responsibility to ensure we exercise our rights responsibly.
17. Your Excellency, allow me now to focus on the assignment that NCHR was assigned to undertake, and to note that in the development of this **Framework** and the accompanying **Guidelines**, the Commission was guided by international standards on reparations, particularly the *Basic Principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violations of International Human Rights Law* and *Serious Violations of International Humanitarian Law*, adopted by the United Nations General Assembly through Resolution A/RES/60/147 of 16 December 2005.

In this process, we as a country have demonstrated our ability to ensure adoption of the highest standard in implementing our human rights obligation especially as a respected member of the United Nations.

18. The Commission also took into account and carefully drew lessons from prior national processes, particularly draft legislation, policies, and regulations that had been proposed. This includes the *Draft Kenya Reparations Bill of 2019* as well as policy and regulatory proposals presented to the Attorney General in 2019 by civil society organizations under the leadership of the Kenya Transitional Justice Network.
19. Your Excellency, despite significant time and resource constraints, this process was undertaken through extensive consultations, public participation and technical engagements with various stakeholders, including with victims, Civil Society Organisations, Constitutional Commissions and Independent Offices, State agencies, and members of the public, all of whom enriched this process with invaluable perspectives and expertise.
20. In compliance with the constitutional principles of public participation as enshrined in **Article 10 of the Constitution of Kenya**, the Commission subjected the Draft Guidelines to a robust public participation process and received a total of **two hundred and eighty-one (281)** submissions from members of the public in the form of memoranda, letters, and proposals. These contributions significantly informed the final Framework that we submit today.
21. Your Excellency, the **Framework** presented today therefore proposes a raft measure for reparations including **compensation, rehabilitation, restitution, satisfaction, and guarantees of non-repetition**. These are standard **reparative justice measures** used in transitional justice and human rights contexts to address harm suffered by victims of violations.

The Framework thus seeks to establish a victim-centered, transparent, and accountable system capable of delivering accessible and effective remedies in accordance with the Constitution and international human rights standards.

22. Further, the Report the Commission is submitting today includes a list of victims who reported violations, including those arising in the context of demonstrations and protests, in line with Your Excellency's Proclamation. The report captures cases documented by the Kenya National Commission, **cases** from the Independent Policing Oversight Authority (IPOA), and other cases received through the Ministry of Interior documented within the 60-day period.
23. However, allow me to note that many more cases have been documented subsequent to the finalization of this Report involving individuals who equally qualify for inclusion in this list. The Commission therefore humbly recommends that Your Excellency considers reparations for these cases in a subsequent processes of course taking into account issues around budgeting processes.
24. Your Excellency, the report that we shall shortly present to you documents and identifies cases of violations that were widespread or systemic in nature. Accordingly, the Commission documented violations arising in **2017** and **2022** which were largely linked to disputes arising from the General Elections and also documents violations from the protests in **2023** and **2024**, particularly during the Finance Bill and "Gen Z protests", and **2025** during the *Saba Saba* demonstrations. The Commission acknowledged that not all cases reported to us qualify as gross human rights violations for Reparations, as some were isolated criminal acts, including those committed by individual police officers and other citizens that should ideally go through the criminal justice processes.

25. In identifying victims, the Commission also acknowledged that a number of human rights violation cases documented before this period had already been captured and included in the Report of the TJRC. **The Commission therefore makes a general recommendation for the full implementation of the TJRC Report.**
26. Your Excellency, the Commission documented **1,815** claims and received **1,022** from the Independent Policing Oversight Authority (IPOA) and others from the Ministry of Interior. Through this process, the Commission has so far verified and obtained consent from a total of **1101** victims across six categories of violations: the right to life (**245** victims); sexual violence (**75** victims), freedom from torture (**135** victims), freedom and security of the person (**473** victims); right to property (**138** victims) and enforced disappearance (**35** victims). The verification process was guided by the “*reasonable basis to believe*” evidentiary standard, consistent with international human rights practice.
27. Your Excellency, while the report acknowledges and makes recommendations on various reparation components, compensation is just one of them, this is in acknowledging that as a country we have resource constraints and the report highly recommends that priority be given to collective reparations especially for regions and areas that have historically suffered from the effects of protests. A lot of these communities have also suffered economic marginalisation and communal reparations and social protection initiatives will go a long way in healing and reconciliation within these communities.

The Commission notes that collective reparations offer an important opportunity for healing fractured communities, rebuilding social cohesion, and restoring confidence in public institutions. Investments in community infrastructure, psychosocial support services, memorial sites, and community development initiatives can serve not only as remedies for past harms but also as symbols of the Nation's commitment to reconciliation and inclusive development.

Your Excellency, Distinguished Guests, Ladies and Gentlemen,

28. The Commission has made several recommendations in this Report including **enactment of a Reparations Law**. This will require commitment from all arms of Government, as well as from the citizenry, not just for its enactment but also for its implementation.
29. The Commission has also made a specific recommendation on operationalising **Article 37** of the Constitution to provide a legislative framework for demonstrations, picketing and assemblies. I am happy to report to your Excellency that we have already put up a team to draft legislative proposals on this fundamental human rights principle that will ensure that this right is exercised responsibly. We hope to make very radical proposal in the proposed framework including using technology to support the exercising of this right. Your Excellency, you are very big on technology and this is the time to leverage on technology to help citizens who want to demonstrate peacefully to do so, and to also assist the law enforcers to identify criminals who disrupt such demonstrations and police officers who use unnecessary force during assemblies.

30. Your Excellency because of the magnitude of this process and the recommendations made, **the Commission notes that that implementation of compensation and reparations must involve all relevant stakeholders.**

31. Your Excellency, since I have the floor today allow me to briefly address the challenges faced by the KNCHR which has historically received limited budgetary allocation to undertake its constitutional mandate, yet the Commission plays a critical role in ensuring that our Country complies with its national, regional, and international human rights obligations. Globally, both multilateral and bilateral partners increasingly require that technical support arrangements and agreements, including those relating to trade, health, and defence, be implemented through a Human Rights-Based Approach (HRBA). This means that the Commission must support Government agencies in integrating human rights standards into these processes. However, due to limited financial resources, the Commission is often unable to effectively provide such support, resulting in legal and financial consequences for the Country when such agreements are later challenged in court.

32. Your Excellency, **our humble appeal as a Constitutional Commission is for the Government to allocate adequate and sustainable funding to enable KNCHR** to continue to effectively discharge its mandate and fulfill its constitutional obligations. The KNCHR has continued to put Kenya on the global map by maintaining its 'A' status as a national human rights institution and your support, Your Excellency will elevate the profile of Kenya as a country that is committed to strengthening and creating strong institutions as a corner stone for democracy.

33. The Commission remains committed to supporting the implementation of these recommendations and to continuously monitor the enforcement of the recommendations herein and to keep your Excellency updated on progress of the implementation.

34. Your Excellency, allow me once again, on behalf of the Commissioners and staff of KNCHR, and most importantly on behalf of the victims and survivors whose voices informed this process, to sincerely thank you for this historic initiative that will shape the future of our Nation. Kenya has taken an important step toward healing historical wounds, strengthening national unity, and building a society founded on justice, human dignity, accountability, and respect for human rights.

35. The true measure of this process will not be in the submission of this Report in itself, but in the subsequent processes towards ensuring lives are restored, trust rebuilt, and hope renewed among Kenyans. Our prayer today is that this initiative stands as a lasting testament that Kenya values every life, every voice, and every citizen, and that collectively we can journey towards a more just, united, and reconciled Nation.

36. Finally, Your Excellency, it is my pleasure as the Chairperson of KNCHR to formally present this **Report, the Reparations Guidelines, the list of victims, and the proposed Legislation on Reparations** today for your consideration and action as the **beginning of a new chapter** in which Kenya moves toward a structured, credible, and sustainable process of addressing human rights violations, rebuilding public trust in institutions, promoting reconciliation among communities, and laying the foundation for lasting national healing.

37. Thank you very much for this opportunity to serve the nation and May God bless you all and bless our country Kenya.

Thank You.

Haki kwa Wote, Kila Wakati!

Claris Ogangah,

A handwritten signature in blue ink, appearing to read 'Clariss', is positioned above a faint, light blue rectangular stamp.

Chairperson,

Kenya National Commission on Human Rights (KNCHR).